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JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.57920 of 2019
(Khizer Hayat vs. The State etc)
&
Criminal Revision No.50268 of 2019
(Mushtaq Ahmed vs. Khizer Hayat etc)

J U D G M E N T

Date of hearing.	**27.05.2024**
Appellant by:	**Mr. Ijaz Ahmad Janjua, Advocate**
State by	**Mr. Nisar Ahmad Virk, Deputy Prosecutor General**
Complainant by	**Ch. Hammad Najib, Advocate**

Malik Shahzad Ahmad Khan, C.J:- This judgment shall dispose of ***Criminal Appeal No.57920 of 2019***, filed by Khizer Hayat (appellant) against his conviction and sentence, as well as ***Criminal Revision No.50268 of 2019***, filed by Mushtaq Ahmed petitioner/complainant for enhancement of sentence awarded to Khizer Hayat (respondent No.1 in the said revision petition), as both these matters have arisen out of the same judgment dated 07.08.2019, passed by the learned Additional Sessions Judge, Gujrat.

2. The appellant along with Muhammad Ikram (accused/co-convict since absconded), was tried in private complaint titled *Ch. Mushtaq Ahmad Vs. Munawar Hussain etc* under sections 302/449/148/149 PPC, in connection with case F.I.R. No.366/2013 dated 11.08.2013, registered at police station Dinga, District Gujrat. After conclusion of the trial, the learned trial Court *vide* its judgment dated 07.08.2019, has convicted and sentenced the appellant as under: -

> ***Under sections 302(b) PPC read with section 149 PPC*** *to imprisonment for life for committing Qatl-e-Amd of Muhammad Asghar alias Saddam (deceased). The appellant was also directed to pay an amount of Rs.3,00,000/- (Rupees three hundred thousand only) as compensation under section 544-A of Cr.P.C to the legal heirs of deceased and in case of default to further undergo six months simple imprisonment.*
>
> *Benefit of section 382-B Cr.P.C was also extended to the appellant.*

It is pertinent to mention here that Muhammad Ikram co-accused was also convicted and sentenced by the learned trial Court but he absented himself at time of pronouncement of the impugned judgment and absconded.

3. Initially on the complaint of Mushtaq Ahmad complainant (PW-4) case F.I.R. No.366/2013 dated 11.08.2013, under sections 302/449/148/149 PPC, was registered at police station Dinga, District Gujrat but later on being dissatisfied with the police investigation, Mushtaq Ahmad complainant (PW-4) filed private complaint (Exh.PK) against the appellant and five others. The learned trial Court, after observing all the pre-trial codal formalities, framed charge under sections 302/449/148/149 PPC against the appellant and his co-accused on 25.02.2014, to which they pleaded not guilty and claimed trial.

4. Brief facts of the case as given by the complainant Ch. Mushtaq Ahmad (PW-4) in his private complaint (Ex.PK), are that he (complainant) was resident of Dhakranwali and was a cultivator by profession. On 11.08.2013, at 2.00 a.m, the complainant along with Qaiser Mehmood (PW since given up), Babar Asjad (PW-3) and Muhammad Asghar alias Saddam (deceased), was sitting inside a room at the *Dera* of the deceased and were talking to each other. In the meanwhile, Munawar Hussain (co-accused since P.O), Habib Nawaz (co-accused since P.O), Usman alias Mani (co-accused since P.O), Ikram (co-accused since absented himself after trial), Khizer Hayat (appellant) and Shamraiz Iqbal (co-accused since P.O), all armed with Kalashnikoves along with three unknown co-accused (who can

be identified), while riding on four motorcycles came there. Munawar Hussain (co-accused since P.O), made a fire shot from his Kalashnikov, which landed on the front of chest of Muhammad Asghar alias Saddam (deceased). Khizer Hayat (appellant), made a fire shot from his Kalashnikov, which also landed on the front of chest of the deceased. Shamraiz Iqbal (co-accused since P.O), made a fire shot from his Kalashnikov, which landed on the left side of belly of the deceased. Usman alias Mani (co-accused since P.O), made a fires shot from Kalashnikov, which landed on the bicep of left arm of the deceased. Ikram (co-accused since absented after the trial), made a fire shot from his Kalashnikov, which landed on the left side of belly of the deceased. Habib Nawaz (co-accused since P.O), made a fire shot, which landed on the left leg of the deceased. All the accused persons made fire shots from their respective weapons, which landed on different parts of the body of Muhammad Asghar alias Saddam (deceased), who succumbed to the injuries at the spot. The accused persons fled away from the spot while making aerial firing and boarding their motorcycles towards Chak Jani. The prosecution eye-witnesses, witnessed the occurrence.

Motive behind the occurrence was previous murder enmity and litigation. The nephew of Khizer Hayat (appellant) and brother of Munawar Hussain (co-accused since P.O) namely Mazhar Iqbal was murdered in a police encounter and FIR No.362, dated 04.08.2010, was lodged at police station Saddar Kharian regarding the said occurrence. The appellant and his co-accused had a suspicion that the abovementioned occurrence took place on the basis of spy information imparted by Muhammad Asghar alias Saddam (deceased) to the police. The complainant also alleged that brother of Khizar Hayat (appellant) namely Shan Ali was also murdered and case FIR No.102, dated 04.03.2008, at police station Dinga, District Gujrat was lodged and the appellant and his co-accused had a suspicion that Muhammad Asghar alias Saddam (deceased), was also involved in the said occurrence.

5. In order to prove its case the prosecution produced four witnesses during the trial, whereas statements of nine Court witnesses (CWs) were also got recorded. The prosecution also produced documentary evidence in shape of Ex.PA to Ex.PK, as well as, Ex.CW.2/A to Ex.CW.9/F. The statement of the appellant under section 342, Cr.P.C was recorded, wherein he refuted the allegations levelled against him and professed his innocence. Statements of two defence witnesses (DWs) were also recorded, whereas documentary evidence in the shape of Ex.DA to Ex.DR, was also tendered in defence evidence. The learned trial Court *vide* its judgment dated 07.08.2019, found the appellant guilty, convicted and sentenced him as mentioned and detailed above.

6. It is contended by learned counsel for the appellant that the appellant is absolutely innocent and he has been falsely implicated in this case; that the appellant has fully proved his plea of alibi through cogent and convincing evidence but the same has wrongly been disbelieved by the learned trial Court; that the prosecution eye-witnesses were not resident of the place, where the occurrence took place and they have not given any cogent reason regarding their presence at the spot at the time of occurrence, therefore, they are chance witnesses and their evidence is not worthy of reliance; that no weapon was recovered at the pointing out of the appellant; that the motive was also not proved by the prosecution; that the prosecution miserably failed to prove its case against the appellant beyond the shadow of doubt, therefore, the appeal filed by the appellant may be accepted and he (appellant) may be acquitted from the charge.

7. On the other hand, it is contended by learned Deputy Prosecutor General assisted by learned counsel for the complainant that the prosecution has proved its case against the appellant beyond the shadow of any doubt; that the FIR was promptly lodged and the evidence of the prosecution could not be shaken, despite lengthy cross-examination; that the appellant has failed to prove his plea of alibi; that merely opinion of the Investigating

Officer about innocence of the appellant is not binding on the Court; that the motive was also proved through reliable evidence of PWs and as such there is no substance in the appeal filed by the appellant, therefore, the same may be dismissed and the criminal revision filed by the complainant for enhancement of sentence of the appellant may be accepted because there is no mitigating circumstance in this case.

8. Arguments heard and record perused.

9. I have noted that Khizar Hayat (appellant), was found innocent during the course of police investigation and his plea of *alibi* was verified by the Investigating Officer. Although the Hon'ble Supreme Court of Pakistan in the case of "***Muhammad Ahmad (Mahmood Ahmed and another Vs the State***"**(2010 SCMR 660)**, has observed that police opinion after recording of prosecution evidence by the learned trial Court becomes irrelevant, however, at the same time, I have noted that the Hon'ble Supreme Court of Pakistan in the cases reported as ***"Khalid Mehmood and others Vs The State"*** **(2011 SCMR 664) &** ***"Sajjad Hussain Vs. The State and others"*** **(2022 SCMR 1540),** has considered the police opinion regarding the innocence of the accused persons as an additional fact for the acquittal of the said accused, coupled with other peculiar facts of the said cases. It is, therefore, evident that if otherwise, there is some doubt in the prosecution case then the findings of the Investigating Officer qua the innocence of an accused can also be considered for the acquittal of the accused provided the said finding is based on some tangible evidence or reasoning. Keeping in view the guide lines given in the abovementioned dictums of the Hon'ble Supreme Court, I proceed to decide the instant case.

10. According to the plea of alibi taken by the appellant, he (appellant), was not present at the village of occurrence i.e. village Dhakranwali, Tehsil Kharian, District Gujrat at the time of occurrence rather he was present at a hotel situated at Liberty Market, Lahore. I have noted that the Investigating Officer of this case namely Muhammad Riaz SI (CW-9), appeared before the learned trial Court as Court witness and during

cross-examination by the accused, he stated about the plea of alibi taken by the appellant as under:-

> *"……It is correct that accused Khizer Hayat present before the Court had pleaded his version that he was present at his hotel stated at Liberty Market, Lahore at the time of occurrence of this case. It is correct that he had pleaded his innocence and further deposed that mobile phone No.0321-4000649 and 0341-4000649, were in his use at the time of occurrence of this case. It is correct that I had received call data Ex.CW.4/A and Ex.CW.4/D on 01.10.2013. I had gone through the call data as to mobile phone No.03241-4000649 and 0341-4000649. It is correct that the location of both the mobile phone Nos. 03241-4000649 and 0341-4000649 was found in the area of Liberty Market, Lahore from 9.57 a.m (morning) to 11.45 p.m (night) on 11.08.2013. It is correct that on 02.10.2013, accused Khizer Hayat had withdrawn his pre-arrest bail. It is correct that I deferred arrest of accused Khizer Hayat U/S 169 of Cr.P.C. It is correct that I visited Lahore to verify the plea of accused Khizer Hayat as to his presence at Liberty Market, Lahore on the date and time of occurrence of this case. It is correct that on 04.10.2013, Munir Ahmad son of Muhammad Arif, R/O Pattoki, District Kasoor Ameer Abbas son of Hassan Abbas, Jamshaid Younas son of Muhammad Younas and Sadaqat Ali son of Muhammad Zaman all residents of Lahore had appeared before me in support of version of accused Khizer Hayat. It is correct that all the said persons tendered their affidavits and made their statements in support of version of accused Khizer Hayat. It is correct that all the said persons tendered their affidavits and made their statements in support of the version of accused Khizer Hayat before me. It is correct that Muhammad Mansah son of Dilawar, R/O Mughlianwali, Tehsil Kharian had also appeared in support of version of accused Khizer Hayat. It is correct that accused Khizer Hayat remained affirmed to his version during the course of my*

> *entire investigation. It is correct that I had verified the version of accused Khizer Hayat. It is correct that place of occurrence is at the distance of about 170 KM from Liberty Market, Lahore"*

I have also noted that the Investigating Officer of this case namely Muhammad Riaz SI (CW-9), clearly deposed that during his investigation, Khizer Hayat (appellant), was found not to be involved in the occurrence of this case and the complainant did not move any application regarding change of investigation. Relevant part of his statement made in this respect reads as under:-

> *"……..It is correct that I have mentioned in the report U/S 173 of Cr.P.C that accused Khizer Hayat present before the Court was not found involved at the place of occurrence during my investigation. It is correct that the complainant had not moved any application against my investigation……"*

It is also noteworthy that in the instant case, the police finding qua the appellant is not merely based on the opinion of the Investigating Officer rather the same is based on *Call-Data* record of the mobile phone numbers of the appellant, which was collected by the Investigating Officer during the course of investigation of this case and statements of the defence witnesses namely Sadaqat Ali and Munir Ahmed recorded in favour of the appellant during the course of investigation. The said witnesses also appeared before the Court during the trial of this case as DW-1 and DW-2. Both the abovementioned defence witnesses categorically stated that the appellant was present at his hotel at Lahore on the day and time of occurrence. They were cross-examined at length by learned counsel for the complainant but their evidence could not be shaken. They remained consistent to the extent of plea of alibi of the appellant. I have further noted that Call-Data recorded of the SIMs (0341-4000649 & 0321-4000649), which Sims were in the use

of Khizer Hayat (appellant), was also tendered in evidence as (Ex.CW-4/B/1-7 and Ex.CW.4/D//1-18, respectively. The said Call-Data record also showed that the appellant was at Lahore at the date and time of occurrence.

Although learned Deputy Prosecutor General assisted by learned counsel for the complainant has argued that no evidence is available on the record to show that the above-mentioned SIMs were owned by the appellant but I have noted that Khizer Hayat (appellant), produced copy of certificate of collection of tax as to mobile No.0321-4000649 as (Ex.DR), which shows that the said SIM number was owned by the appellant. Moreover, the complainant never moved any application for summoning of the ownership record of the above-referred Sims from the concerned companies. He never challenged the findings of the I.O. by moving an application for change of investigation which shows that he was satisfied with the findings of I.O. qua the appellant, therefore, there is no substance in the abovementioned argument of learned Deputy Prosecutor General assisted by learned counsel for the complainant.

11. Furthermore, it is an admitted fact that there is a single deceased in this case namely Muhammad Asghar alias Saddam and the complainant has implicated as many as six named and three unknown accused total nine accused persons in this case for the said single deceased. I have also noted that Muhammad Asghar alias Saddam (appellant), was involved in number of criminal cases and sixteen (16) FIRs registered against him were tendered by Khizer Hayat (appellant), in his defence evidence as (Ex.DB to Ex.DQ). I have further noted that even Mushtaq Ahmad complainant (PW-4), admitted during his cross-examination that the correct name of deceased was Muhammad Asghar and his nickname Saddam was due to the reason that he (deceased) was a brave man of the locality and had scattered enmities. The relevant part of statement of the complainant made in this respect is reproduced hereunder for ready reference:-

> *"…….It is correct that correct name of deceased was Muhammad Asghar. It is correct that his nick name Saddam*

was due to the reason that he was a brave man of the locality and had scattered enmities……..."

Babar Asjad (PW-3), also admitted during his cross-examination that so many criminal cases were registered against Asghar alias Saddam (deceased). Relevant part of his statement reads as under:-

"It is correct that so many criminal cases were registered against Asghar alias Saddam (deceased) "

As the complainant party and the deceased were involved in number of criminal cases, which shows that they are habitual criminals, and as nine accused have been implicated in this case for the single deceased, therefore, there is every possibility that the appellant was falsely implicated in this case by the complainant party while using the wider net, hence the findings of I.O. cannot be lightly brushed aside, specially while keeping in view the oral and documentary evidence produced by the appellant in his defence.

12. It is further noteworthy that the occurrence in this case took place at the *Daira* of Muhamad Asghar alias Saddam (deceased). Babar Asjad (PW-3) and Mushtaq Ahmad complainant (PW-4), were residents of village Dhakranwali, which was at a distance of 1 to 1½ kilometers from the place of occurrence. Mushtaq Ahmad complainant (PW-4), admitted during his cross-examination that the alleged place of occurrence is at a distance of about one mile from village Dhakranwali. Relevant part of his statement made in this respect is reproduced hereunder for ready reference:-

"*…….Alleged place of occurrence is at a distance of about one mile from village Dhakranwali……*"

Muhammad Anwar SI (CW-8), who also Investigated this case, admitted during his cross-examination that village Dhakranwali is at a distance of 1.5/2 KM from the place of occurrence and during his investigation, the

complainant and the eye-witnesses had not disclosed the reason of their presence at the place of occurrence. Relevant parts of his statements made in this respect are reproduced hereunder:-

> *"……..Village Dhakranwali is at a distance of 1.5/2 Km from the place of occurrence……. ……The complainant and eye witnesses had not disclosed the reason of their presence at the place of occurrence during my investigation"*

In the light of above, both the prosecution eye-witnesses namely Babar Asjad (PW-3) and Mushtaq Ahmad (PW-4), were chance witnesses and they were bound to prove the reason of their presence at the spot at the relevant time. They have not given any cogent reason of their presence at the spot at the time of occurrence, therefore, they are chance witnesses and as such their evidence is not free from doubt. The Hon'ble Supreme Court of Pakistan in the case of ***"Mst. Sughra Begum and another Vs. Qaiser Pervez and others"*** **(2015 SCMR 1142)** at Para No.14, observed regarding the chance witnesses as under:-

> *"14. A chance witness, in legal parlance is the one who claims that he was present on the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence and normal course of events, he was not supposed to be present on the spot but at a place where he resides, carries on business or runs day to day life affairs. It is in this context that the testimony of chance witness, ordinarily, is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. True that in rare cases, the testimony of chance witness may be relied upon, provided some convincing explanations appealing to prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt."*

Similar view was taken in the case of ***"Muhammad Irshad Vs. Allah Ditta and others"*** **(2017 SCMR 142)**. Relevant part of the said judgment at Para No.2 reads as under:-

> *"……Muhammad Irshad complainant (PW8) and Rab Nawaz (PW9) were chance witnesses and the stated reason for their presence with the deceased at the relevant time had never been established before the trial court through any independent evidence……"*

As the above-mentioned prosecution eye-witnesses are chance witnesses and they could not prove the reason of their presence at the spot at the time of occurrence, therefore, their very presence at the spot at the relevant time becomes doubtful.

13. As per prosecution's case, the motive behind the occurrence was previous murder enmity and litigation. The nephew of Khizer Hayat (appellant) and brother of Munawar Hussain (co-accused since P.O) namely Mazhar Iqbal was murdered in police encounter and FIR No.362, dated 04.08.2010, was lodged at police station Saddar Kharian regarding the said occurrence. The appellant and his co-accused had a suspicion that the abovementioned occurrence took place on the basis of spy information imparted by Muhammad Asghar alias Saddam (deceased) to the police. The complainant also alleged that brother of Khizar Hayat (appellant) namely Shan Ali was also murdered and case FIR No.102, dated 04.03.2008, at police station Dinga, District Gujrat was lodged and the appellant and his co-accused had a suspicion that Muhammad Asghar alias Saddam (deceased), was also involved in the said occurrence. I have noted that Mushtaq Ahmad complainant (PW-4), while lodging the FIR only alleged that motive behind the occurrence was previous murder enmity and litigation between the parties, however, when he (complainant), lodged private complaint Ex.PA, he improved his version while mentioning the abovementioned facts. I have also noted that the prosecution eye-witnesses namely Babar Asjad (PW-3) and Mushtaq Ahmad (PW-4), during their statements recorded before the learned trial Court made dishonest improvements qua the motive part of the prosecution story. Both the abovementioned PWs were confronted with their previous statements during cross-examination and the dishonest improvements made by them regarding the motive part of the prosecution case were duly brought on the

record. The relevant part of their statements are reproduced hereunder for ready reference:-

Asjad Mehmood (PW-3)

"I had got recorded in my statement before the police that Zafraan nephew of acucsed Khizar Hayat and brother of accused Munawar Hussain namely Mazhar Iqbal were proclaimed offenders and were murdered in police encounter of Police Station Kharian for which case FIR No.362/2010, dated 04.08.2010, was registered at PS Sadar Kharian, Gujrat. (Confronted with Ex.DA where no so recorded). I had got recorded in my statement before the police that accused persons had suspicion that Muhammad Asghar alias Saddam (deceased) had supplied spy information to the local police about Zafraan and Mazhar Iqbal and they were murdered in police encounter. (Confronted with Ex.DA where not so recorded). I had got recorded in my statement before the police that Shan Ali alias Shana, the real brother of accused Khizer Hayat was murdered for which case FIR No.102, dated 04.03.2008, was registered at PS Dinga, Gujrat and the accused persons had suspicion that there was hidden hand of Muhammad Ashgar alias Saddam (deceased) in the murder of Shan alias Shana. (Confronted with Ex.DA where not so recorded)……"

Mushtaq Ahmed (PW-4)

"I had got recorded in my application for registration of case Ex.PJ that Zafraaan nephew of accused Khizer Hayat and brother of accused Munawar Hussain namely Mazhar Iqbal were proclaimed offenders and were murdered in police encounter of PS Kharian for which case FIR No.362/2010, dated 04.08.2010, was registered at PS Sadar Kharian, Gujrat. (Confronted with Ex.PJ where not so recorded). I had got

> *recorded in my application for registration of case Ex.PJ that accused persons had suspicion that Muhammad Asghar alias Saddam (deceased) had supplied spy information to the local police about Zafraan and Mazhar Iqbal and they were murdered in police encounter. (Confronted with Ex.PJ where not so recorded). I had got recorded in my statement Ex.PJ that Shan Ali alias Shana, the real brother of accused Khizar Hayat was murdered for which case FIR No.102, dated 04.03.2008, was registered at Police Station Dinga, Gujrat and the accused persons had suspicion that there was hidden hand of Muhammad Asghar alias Saddam (deceased) in the murder of Shan alias Shana. (Confronted with Ex.PJ where not so recorded). It is incorrect to suggest that I have made dishonest improvements in my private complaint Ex.PK as well as in my statement before the Court with regard to motive part of the occurrence in order to strengthen my false private complaint. It is correct that I had not produced any document as to previous murder enmity and litigation with the present accused Khizer Hayat and Ikraam to the police during the course of investigation. It is correct that the deceased Muhammad Asghar alias Saddam was not accused in the case FIR No.102, dated 04.03.2008, Ex.PH as to murder of Shan alias Shana. It is correct that deceased Muhammad Asghar alias Saddam was not a witness in the said case FIR No.102, dated 04.03.2008 Ex.PH. It is correct that Muhammad Asghar alias Saddam (deceased) was neither accused nor witness in case FIR No.362,d ated 04.08.2010 Ex.PG.……"*

I have further noted that even the Investigating Officer of this case namely Muhammad Riaz SI (CW-9), admitted during his cross examination that the complainant did not produce any document with regard to motive part of the occurrence of this case. Relevant part of his statement reads as under:-

> *"It is correct that the complainant had not produced any document with regard to motive of the occurrence of this case. It*

> *is correct that during the course of my investigation, the complainant and the eye-witnesses had not deposed before me as to case FIR No.102/2008 and case FIR No.362/2010 as motive of the occurrence of this case……*

It is further noteworthy that the learned trial Court in paragraph No.46, of the impugned judgment has also disbelieved the abovementioned motive. I am, therefore, of the view that the prosecution has failed to prove the motive part of its case.

14. No weapon was recovered at the pointing out of the appellant during the course of investigation.

15. Insofar as the medical evidence of the prosecution is concerned, it is by now well settled that medical evidence is a type of supporting evidence, which may confirm the ocular account with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant. Reference in this context may be made to the cases of ***"Muhammad Tasaweer Vs. Hafiz Zulkarnain and 2 others"*** (**PLD 2009 SC 53),** ***"Altaf Hussain Vs. Fakhar Hussain and another"*** (**2008 SCMR 1103)** and ***"Mursal Kazmi alias Qamar Shah and another Vs. The State"*** **(2009 SCMR 1410).**

16**.** I have considered all the aspects of this case and have come to this irresistible conclusion that the prosecution evidence is full of doubts. It is by now well settled that if there is a single circumstance which creates doubt regarding the prosecution case, the same is sufficient to give benefit of doubt to the accused, whereas, the instant case is replete with number of circumstances which have created serious doubts about the truthfulness of the prosecution story. In ***'Tariq Pervez Vs. The State'*** **(1995 SCMR 1345)**, the Hon'ble Supreme Court of Pakistan, at page 1347, was pleased to observe as under:-

> *"5……..The concept of benefit of doubt to an accused person is deep-rooted in our country. For giving him benefit of doubt, it is not necessary that there should be many circumstances creating doubts. If there is a*

> *circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused will be entitled to the benefit not as a matter of grace and concession but as a matter of right."*

The Hon'ble Supreme Court of Pakistan while reiterating the same principle in the case of ***"Muhammad Akram Vs. The State"*** **(2009 SCMR 230)**, at page 236, observed as under:-

> "*13……..It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right."*

17**.** In the light of above discussion, I **accept Criminal Appeal No.57920 of 2019** filed by Khizer Hayat (appellant), set aside his conviction and sentence recorded by the learned Additional Sessions Judge, Gujrat *vide* impugned judgment dated 07.08.2019 and acquit him of the charge under Sections 302(b)/149 PPC by extending him the benefit of doubt. The appellant is in custody, he be released forthwith, if not required to be detained in any other case.

18. Insofar as **Criminal Revision No.50268 of 2019**, filed by Mushtaq Ahmed (complainant) for enhancement of sentence, awarded by the learned trial Court against Khizer Hayat (appellant) from imprisonment for life to death is concerned, I have already disbelieved the prosecution evidence due to the reasons mentioned in paragraph Nos.10 to 15 of this judgment and Khizer Hayat (appellant) has been acquitted due to the reasons, mentioned therein, therefore, this criminal revision being devoid of any force is hereby dismissed.

19. It is pertinent to mention here that Munawar Hussain, Usman alias Mani, Habib Nawaz and Shamraiz Iqbal (co-accused), are still proclaimed offenders in this case, whereas Muhammad Ikram (accused/co-convict),

absented himself from the Court at the time of pronouncement of the impugned judgment, therefore, it is directed that the case property be kept intact till arrest of the abovementioned co-accused since proclaimed offenders and till the decision of the case to their extent. The findings recorded in this case are only to the extent of Khizer Hayat (appellant) and the case of the above-mentioned co-accused since P.Os shall be decided on its own merits and on the basis of evidence recorded after the arrest of Munawar Hussain, Usman alias Mani, Habib Nawaz and Shamraiz Iqbal (co-accused since P.Os) whereas the appeal of Muhammad Ikram, co-accused since absconded shall also be decided on its own merits.

(***MALIK SHAHZAD AHMAD KHAN***)
Chief Justice

This judgment has been dictated & pronounced on 27.05.2024, whereas prepared and signed on 29.05.2024.

Aitazaz

Approved for reporting.

(***MALIK SHAHZAD AHMAD KHAN***)
Chief Justice